



Reprinted
January 21, 2026

SENATE BILL No. 256

DIGEST OF SB 256 (Updated January 20, 2026 3:52 pm - DI 106)

Citations Affected: IC 4-6.

Synopsis: Foreign agent registration and foreign terrorist organizations. Requires certain persons acting on behalf of a hostile foreign country to register with the attorney general. Establishes a procedure to deny state benefits to persons who aid a foreign terrorist organization.

Effective: July 1, 2026.

**Garten, Koch, Freeman, Busch,
Baldwin**

January 8, 2026, read first time and referred to Committee on Judiciary.
January 15, 2026, reported favorably — Do Pass.
January 20, 2026, read second time, amended, ordered engrossed.

SB 256—LS 6708/DI 106



Reprinted
January 21, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 256

A BILL FOR AN ACT to amend the Indiana Code concerning state offices and administration.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 4-6-17 IS ADDED TO THE INDIANA CODE AS
2 A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]:

4 **Chapter 17. Foreign Agent Registration and Foreign Terrorist**
5 **Organizations**

6 **Sec. 1. As used in this chapter, "affiliate of a foreign terrorist**
7 **organization" means a person who:**

8 **(1) is or was an agent, representative, employee, or servant of**
9 **a foreign terrorist organization;**

10 **(2) acts or acted in any capacity at the order or request or**
11 **under the direction or control of a foreign terrorist**
12 **organization; or**

13 **(3) provides, or at any point in the preceding five (5) years**
14 **provided, material support or resources to aid a foreign**
15 **terrorist organization.**

16 **Sec. 2. As used in this chapter, "agent" means an agent of a**
17 **hostile foreign principal.**

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1 **Sec. 3. As used in this chapter, "agent of a hostile foreign**
 2 **principal" means a person:**

3 **(1) who either:**

4 **(A) is an agent, representative, employee, or servant; or**

5 **(B) acts in any capacity at the order, request, or under the**
 6 **direction or control;**

7 **of a hostile foreign principal;**

8 **(2) whose activities are directly or indirectly financed in whole**
 9 **or in part by a hostile foreign principal; and**

10 **(3) who engages in political activity on behalf of a hostile**
 11 **foreign principal in Indiana.**

12 **Sec. 4. As used in this chapter, "foreign supported political**
 13 **organization" means a political party, or a domestic partnership,**
 14 **association, corporation, organization, or other combination of**
 15 **persons:**

16 **(1) that has, within the previous five (5) calendar years,**
 17 **received money or anything of value from a hostile foreign**
 18 **principal or an agent; and**

19 **(2) that engages in political activity.**

20 **Sec. 5. As used in this chapter, "hostile foreign country" means**
 21 **one (1) or more of the following:**

22 **(1) The People's Republic of China.**

23 **(2) The Russian Federation.**

24 **(3) The People's Republic of North Korea.**

25 **(4) The Islamic Republic of Iran.**

26 **Sec. 6. As used in this chapter, "foreign terrorist organization"**
 27 **means any organization designated by the United States**
 28 **government as a Foreign Terrorist Organization under Section 219**
 29 **of the Immigration and Nationality Act (8 U.S.C. 1189).**

30 **Sec. 7. As used in this chapter, "hostile foreign principal" means**
 31 **one (1) or more of the following:**

32 **(1) The government of a hostile foreign country, a political**
 33 **party of a hostile foreign country, or any member of a**
 34 **political party of a hostile foreign country.**

35 **(2) A nonresident alien of a hostile foreign country.**

36 **(3) A partnership, association, corporation, organization, or**
 37 **other combination of persons organized under the laws of, or**
 38 **having its principal place of business in, a hostile foreign**
 39 **country.**

40 **(4) A partnership, association, corporation, organization, or**
 41 **other combination of persons that is at least twenty percent**
 42 **(20%) beneficially owned by a hostile foreign country, the**



government of a hostile foreign country, a nonresident alien of a hostile foreign country, or an entity organized under the laws of, or having its principal place of business in, a hostile foreign country.

Sec. 8. As used in this chapter, "political activity" means an activity that is performed with the intent to influence:

(1) a state or local governmental entity, agency, or public official in Indiana; or

(2) the general public in Indiana; concerning the formulation, adoption, or modification of the laws or policies of the state, or the election or opposition to the election of a candidate for state or local office.

Sec. 9. (a) This section applies to an agent. Before acting as an agent, a person who acts as an agent shall file with the attorney general a true and complete registration statement in addition to supplements as required.

(b) The registration statement must include the following:

(1) The registrant's name.

(2) The registrant's principal business address, and all other business addresses in the United States or elsewhere.

(3) The registrant's residential addresses, if any.

(4) If the registrant is an individual, the registrant's nationality.

(5) If the registrant is a partnership, the names, residential addresses, and nationalities of each partner and a true and complete copy of the partnership's certificate of partnership.

(6) If the registrant is an association, corporation, organization, or any other combination of individuals, the following:

(A) The names, residential addresses, and nationalities of each director and officer and each person performing the functions of a director or officer.

(B) A true and complete copy of its charter, articles of incorporation, association, constitution, bylaws, and amendments to those documents.

(C) A copy of every other instrument or document and a statement of the terms and conditions of every oral agreement relating to its organization, powers, and purposes.

(D) A statement of its ownership and control.

(7) A comprehensive statement of the nature of the registrant's business.



(8) A complete list of the registrant's employees and a statement of the nature of the work of each employee.

(9) The name and address of every hostile foreign principal for whom the registrant is acting or has agreed to act.

(10) The character of the business or other activities of every hostile foreign principal and, if a hostile foreign principal is not a natural person, a statement of the ownership and control of each hostile foreign principal.

(11) The extent, if any, to which each hostile foreign principal is supervised, directed, owned, controlled, financed, or subsidized, in whole or in part, by a government of a foreign country or foreign political party, or by another agent or hostile foreign principal.

(12) A comprehensive statement of the nature and method of performance of each contract with a hostile foreign principal.

(13) A comprehensive statement of the existing and proposed activities engaged in, or to be engaged in, by the registrant as an agent, including a detailed statement of any activity that is a political activity.

(14) The nature and amount of contributions, income, money, or things of value, if any, that the registrant has received within the preceding sixty (60) days from each hostile foreign principal, either as compensation or for disbursement or otherwise, and the form and time of each such payment and from whom received.

(15) A detailed statement of every activity that the registrant assumes, purports, or agrees to perform for the registrant or any other person other than a hostile foreign principal and that requires registration under this chapter, including a detailed statement of any activity that is a political activity.

(16) The name, business, and residence addresses, and if an individual, the nationality, of any person other than a hostile foreign principal for whom the registrant is acting or has agreed to act and the following:

(A) Information concerning the extent that the person is supervised, directed, owned, controlled, financed, or subsidized, in whole or in part, by any government of a foreign country or foreign political party or by any other foreign principal from a hostile foreign country.

(B) Information concerning the nature and amount of contributions, income, money, or things of value, if any, that the registrant has received during the preceding sixty



(60) days from each person in connection with any of the activities under subdivision (15), either as compensation or for disbursement or otherwise, and the form and time of each payment and from whom payment was received.

(17) A detailed statement of the money and other things of value spent or disposed of by the registrant during the preceding sixty (60) days in furtherance of or in connection with activities that require registration under this chapter.

(18) Notwithstanding any other laws, a detailed statement of any contributions of money or other things of value made by the registrant during the preceding sixty (60) days in connection with an election to any political office or in connection with any primary election, convention, or caucus held to select candidates for any political office.

(19) Other statements, information, or documents as required by the attorney general.

(20) Statements and copies of documents that are necessary to make the statements made in the registration statement and supplements not misleading.

(c) In addition to the information required under subsection (b), a registrant must also file copies of each written agreement and the terms and conditions of each oral agreement, including any modifications, or, where no contract exists, a full statement of all the circumstances, by reason of which the registrant is an agent.

(d) A registrant must update the information required under subsection (b) at least once every quarter.

(e) An agent shall pay a fee of five hundred dollars (\$500) at the time the agent files an initial registration statement under this chapter.

(f) An agent shall pay a fee of one hundred dollars (\$100) each time the agent files a supplemental registration statement under this section.

(g) A fee established by the attorney general in accordance with this section must accompany an application for registration or renewal of registration.

(h) Failure to comply with subsections (a) through (d) is a violation of this chapter.

Sec. 10. (a) Before January 1, 2027, a foreign supported political organization must file with the attorney general a true and complete registration statement in addition to supplements as required.

(b) The registration statement must include the following:



(1) The name of the foreign supported political organization, its business address, and the names, titles, and addresses of all officers and directors of the foreign supported political organization.

(2) If the foreign supported political organization is affiliated with or is a chapter of a national organization, the name of the national organization, its address, and the names and addresses of its officers and directors.

(3) A detailed statement of any expenditures of money or anything of value made by the organization within the prior calendar year for the purpose of political activity.

(4) A detailed statement of all money or anything of value received by the organization from a hostile foreign principal or an agent during the preceding calendar year.

(c) A registrant must update the information required under subsection (b) at least once every quarter.

(d) A foreign supported political organization shall pay a fee of five hundred dollars (\$500) at the time the agent files an initial registration statement under this section.

(e) A fee established by the attorney general in accordance with this chapter must accompany an application for registration or renewal of registration.

(f) Failure to comply with subsections (a) through (c) is a violation of this chapter.

Sec. 11. It is a violation of this chapter if a person or agent:

(1) submits a registration statement required to be filed under this chapter that is materially incorrect;

(2) fails to file a corrected registration statement or report after being requested to do so by the attorney general; or

(3) fails to make a filing required by section 9 or section 10 of this chapter.

Sec. 12. (a) Whenever the attorney general has reasonable cause to believe a person or entity may be an affiliate of a foreign terrorist organization, the attorney general may exercise all existing civil investigative powers, including the issuance of civil investigative demands, to determine whether the entity is an affiliate of a foreign terrorist organization.

(b) If the attorney general determines, based on the attorney general's investigation, that a person or entity is an affiliate of a foreign terrorist organization, the attorney general shall notify the person or entity of the attorney general's determination and provide the entity with thirty (30) days in which to submit a formal



1 response to the attorney general's determination.

2 (c) The attorney general shall provide the attorney general's
3 determination, the evidence on which it is based, and the person's
4 or entity's response to the governor.

5 Sec. 13. The governor shall designate a person or entity as an
6 affiliate of a foreign terrorist organization if the governor
7 concludes, based on a review of the results of the investigation
8 conducted by the attorney general under section 12 of this chapter
9 and the person's or entity's formal response, that the evidence
10 amassed by the attorney general demonstrates that it is more likely
11 than not that the person or entity is an affiliate of a foreign
12 terrorist organization.

13 Sec. 14. (a) Any person or entity that is designated an affiliate
14 of a foreign terrorist organization shall:

15 (1) be denied all state funds provided by any state agency,
16 including:

17 (A) funding;

18 (B) benefits; or

19 (C) other forms of support;

20 received or provided, directly or indirectly, from the state;

21 (2) be prohibited from entering into any contract with the
22 state; and

23 (3) be denied any:

24 (A) employment;

25 (B) tax benefit;

26 (C) privilege; or

27 (D) other form of a state benefit or privilege, whether
28 provided or received directly or indirectly.

29 (b) No public university, community college, school district, or
30 other recipient of state funds may, after the date of the governor
31 designates that a person or entity is an affiliate of a foreign
32 terrorist organization under section 13 of this chapter, knowingly
33 provide a grant, contract, loan, tax credit, tax exemption, or other
34 financial benefit to an affiliate of a foreign terrorist organization.

35 Sec. 15. (a) A designation under section 13 of this chapter
36 remains in effect until rescinded by the governor.

37 (b) The governor shall rescind a designation under section 13 of
38 this chapter only if:

39 (1) the governor determines that the designation was
40 erroneous; or

41 (2) the governor determines that the actions of the person or
42 entity that support the designation occurred more than five



1 (5) years ago.

2 **Sec. 16. (a) If the attorney general has reasonable cause to**
3 **believe a violation of this chapter has occurred, the attorney**
4 **general may bring an action in the name of the state in connection**
5 **with a violation of this chapter to seek:**

6 (1) appropriate injunctive or other equitable relief;

7 (2) the costs and expenses of the suit, including reasonable
8 attorney's fees and expert fees; and

9 (3) a civil penalty of not more than five hundred dollars
10 (\$500).

11 **(b) If a violation of this chapter is committed intentionally, or**
12 **constitutes a second or subsequent violation, the attorney general**
13 **may bring a civil action to recover a civil penalty of not more than**
14 **ten thousand dollars (\$10,000) per violation, in addition to the**
15 **relief provided in subsection (a)(1) and (a)(2).**

16 **(c) A civil penalty collected under this chapter shall be deposited**
17 **in the state general fund.**

18 **Sec. 17. The attorney general may adopt rules under IC 4-22-2**
19 **to carry out this chapter.**



COMMITTEE REPORT

Mr. President: The Senate Committee on Judiciary, to which was referred Senate Bill No. 256, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill DO PASS.

(Reference is to SB 256 as introduced.)

CARRASCO, Chairperson

Committee Vote: Yeas 8, Nays 2

 SENATE MOTION

Mr. President: I move that Senate Bill 256 be amended to read as follows:

Page 1, delete line 4 and insert **"Chapter 17. Foreign Agent Registration and Foreign Terrorist Organizations"**

Sec. 1. As used in this chapter, "affiliate of a foreign terrorist organization" means a person who:

- (1) is or was an agent, representative, employee, or servant of a foreign terrorist organization;**
- (2) acts or acted in any capacity at the order or request or under the direction or control of a foreign terrorist organization; or**
- (3) provides, or at any point in the preceding five (5) years provided, material support or resources to aid a foreign terrorist organization."**

Page 1, line 5, delete "Sec. 1." and insert **"Sec. 2."**

Page 1, line 7, delete "Sec. 2." and insert **"Sec. 3."**

Page 1, line 16, after "activity" insert **"on behalf of a hostile foreign principal"**.

Page 1, line 17, delete "Sec. 3." and insert **"Sec. 4."**

Page 2, delete lines 8 through 42, begin a new paragraph, and insert:

"Sec. 5. As used in this chapter, "hostile foreign country" means one (1) or more of the following:

- (1) The People's Republic of China.**
- (2) The Russian Federation.**
- (3) The People's Republic of North Korea.**
- (4) The Islamic Republic of Iran.**

Sec. 6. As used in this chapter, "foreign terrorist organization"

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means any organization designated by the United States government as a Foreign Terrorist Organization under Section 219 of the Immigration and Nationality Act (8 U.S.C. 1189).

Sec. 7. As used in this chapter, "hostile foreign principal" means one (1) or more of the following:

- (1) The government of a hostile foreign country, a political party of a hostile foreign country, or any member of a political party of a hostile foreign country.
- (2) A nonresident alien of a hostile foreign country.
- (3) A partnership, association, corporation, organization, or other combination of persons organized under the laws of, or having its principal place of business in, a hostile foreign country.
- (4) A partnership, association, corporation, organization, or other combination of persons that is at least twenty percent (20%) beneficially owned by a hostile foreign country, the government of a hostile foreign country, a nonresident alien of a hostile foreign country, or an entity organized under the laws of, or having its principal place of business in, a hostile foreign country.

Sec. 8. As used in this chapter, "political activity" means an activity that is performed with the intent to influence:

- (1) a state or local governmental entity, agency, or public official in Indiana; or
- (2) the general public in Indiana;

concerning the formulation, adoption, or modification of the laws or policies of the state, or the election or opposition to the election of a candidate for state or local office.

Sec. 9. (a) This section applies to an agent. Before acting as an agent, a person who acts as an agent shall file with the attorney general a true and complete registration statement in addition to supplements as required.

(b) The registration statement must include the following:

- (1) The registrant's name.
- (2) The registrant's principal business address, and all other business addresses in the United States or elsewhere.
- (3) The registrant's residential addresses, if any.
- (4) If the registrant is an individual, the registrant's nationality.
- (5) If the registrant is a partnership, the names, residential addresses, and nationalities of each partner and a true and complete copy of the partnership's certificate of partnership.



(6) If the registrant is an association, corporation, organization, or any other combination of individuals, the following:

(A) The names, residential addresses, and nationalities of each director and officer and each person performing the functions of a director or officer.

(B) A true and complete copy of its charter, articles of incorporation, association, constitution, bylaws, and amendments to those documents.

(C) A copy of every other instrument or document and a statement of the terms and conditions of every oral agreement relating to its organization, powers, and purposes.

(D) A statement of its ownership and control.

(7) A comprehensive statement of the nature of the registrant's business.

(8) A complete list of the registrant's employees and a statement of the nature of the work of each employee.

(9) The name and address of every hostile foreign principal for whom the registrant is acting or has agreed to act.

(10) The character of the business or other activities of every hostile foreign principal and, if a hostile foreign principal is not a natural person, a statement of the ownership and control of each hostile foreign principal.

(11) The extent, if any, to which each hostile foreign principal is supervised, directed, owned, controlled, financed, or subsidized, in whole or in part, by a government of a foreign country or foreign political party, or by another agent or hostile foreign principal.

(12) A comprehensive statement of the nature and method of performance of each contract with a hostile foreign principal.

(13) A comprehensive statement of the existing and proposed activities engaged in, or to be engaged in, by the registrant as an agent, including a detailed statement of any activity that is a political activity.

(14) The nature and amount of contributions, income, money, or things of value, if any, that the registrant has received within the preceding sixty (60) days from each hostile foreign principal, either as compensation or for disbursement or otherwise, and the form and time of each such payment and from whom received.

(15) A detailed statement of every activity that the registrant



assumes, purports, or agrees to perform for the registrant or any other person other than a hostile foreign principal and that requires registration under this chapter, including a detailed statement of any activity that is a political activity.

(16) The name, business, and residence addresses, and if an individual, the nationality, of any person other than a hostile foreign principal for whom the registrant is acting or has agreed to act and the following:

(A) Information concerning the extent that the person is supervised, directed, owned, controlled, financed, or subsidized, in whole or in part, by any government of a foreign country or foreign political party or by any other foreign principal from a hostile foreign country.

(B) Information concerning the nature and amount of contributions, income, money, or things of value, if any, that the registrant has received during the preceding sixty (60) days from each person in connection with any of the activities under subdivision (15), either as compensation or for disbursement or otherwise, and the form and time of each payment and from whom payment was received.

(17) A detailed statement of the money and other things of value spent or disposed of by the registrant during the preceding sixty (60) days in furtherance of or in connection with activities that require registration under this chapter.

(18) Notwithstanding any other laws, a detailed statement of any contributions of money or other things of value made by the registrant during the preceding sixty (60) days in connection with an election to any political office or in connection with any primary election, convention, or caucus held to select candidates for any political office.

(19) Other statements, information, or documents as required by the attorney general.

(20) Statements and copies of documents that are necessary to make the statements made in the registration statement and supplements not misleading.

(c) In addition to the information required under subsection (b), a registrant must also file copies of each written agreement and the terms and conditions of each oral agreement, including any modifications, or, where no contract exists, a full statement of all the circumstances, by reason of which the registrant is an agent.

(d) A registrant must update the information required under subsection (b) at least once every quarter.



(e) An agent shall pay a fee of five hundred dollars (\$500) at the time the agent files an initial registration statement under this chapter.

(f) An agent shall pay a fee of one hundred dollars (\$100) each time the agent files a supplemental registration statement under this section.

(g) A fee established by the attorney general in accordance with this section must accompany an application for registration or renewal of registration.

(h) Failure to comply with subsections (a) through (d) is a violation of this chapter.

Sec. 10. (a) Before January 1, 2027, a foreign supported political organization must file with the attorney general a true and complete registration statement in addition to supplements as required.

(b) The registration statement must include the following:

(1) The name of the foreign supported political organization, its business address, and the names, titles, and addresses of all officers and directors of the foreign supported political organization.

(2) If the foreign supported political organization is affiliated with or is a chapter of a national organization, the name of the national organization, its address, and the names and addresses of its officers and directors.

(3) A detailed statement of any expenditures of money or anything of value made by the organization within the prior calendar year for the purpose of political activity.

(4) A detailed statement of all money or anything of value received by the organization from a hostile foreign principal or an agent during the preceding calendar year.

(c) A registrant must update the information required under subsection (b) at least once every quarter.

(d) A foreign supported political organization shall pay a fee of five hundred dollars (\$500) at the time the agent files an initial registration statement under this section.

(e) A fee established by the attorney general in accordance with this chapter must accompany an application for registration or renewal of registration.

(f) Failure to comply with subsections (a) through (c) is a violation of this chapter.

Sec. 11. It is a violation of this chapter if a person or agent:

(1) submits a registration statement required to be filed under



this chapter that is materially incorrect;

(2) fails to file a corrected registration statement or report after being requested to do so by the attorney general; or

(3) fails to make a filing required by section 9 or section 10 of this chapter.

Sec. 12. (a) Whenever the attorney general has reasonable cause to believe a person or entity may be an affiliate of a foreign terrorist organization, the attorney general may exercise all existing civil investigative powers, including the issuance of civil investigative demands, to determine whether the entity is an affiliate of a foreign terrorist organization.

(b) If the attorney general determines, based on the attorney general's investigation, that a person or entity is an affiliate of a foreign terrorist organization, the attorney general shall notify the person or entity of the attorney general's determination and provide the entity with thirty (30) days in which to submit a formal response to the attorney general's determination.

(c) The attorney general shall provide the attorney general's determination, the evidence on which it is based, and the person's or entity's response to the governor.

Sec. 13. The governor shall designate a person or entity as an affiliate of a foreign terrorist organization if the governor concludes, based on a review of the results of the investigation conducted by the attorney general under section 12 of this chapter and the person's or entity's formal response, that the evidence amassed by the attorney general demonstrates that it is more likely than not that the person or entity is an affiliate of a foreign terrorist organization.

Sec. 14. (a) Any person or entity that is designated an affiliate of a foreign terrorist organization shall:

(1) be denied all state funds provided by any state agency, including:

(A) funding;

(B) benefits; or

(C) other forms of support;

received or provided, directly or indirectly, from the state;

(2) be prohibited from entering into any contract with the state; and

(3) be denied any:

(A) employment;

(B) tax benefit;

(C) **privilege; or**



(D) other form of a state benefit or privilege, whether provided or received directly or indirectly.

(b) No public university, community college, school district, or other recipient of state funds may, after the date of the governor designates that a person or entity is an affiliate of a foreign terrorist organization under section 13 of this chapter, knowingly provide a grant, contract, loan, tax credit, tax exemption, or other financial benefit to an affiliate of a foreign terrorist organization.

Sec. 15. (a) A designation under section 13 of this chapter remains in effect until rescinded by the governor.

(b) The governor shall rescind a designation under section 13 of this chapter only if:

- (1) the governor determines that the designation was erroneous; or**
- (2) the governor determines that the actions of the person or entity that support the designation occurred more than five**
- (5) years ago.**

Sec. 16. (a) If the attorney general has reasonable cause to believe a violation of this chapter has occurred, the attorney general may bring an action in the name of the state in connection with a violation of this chapter to seek:

- (1) appropriate injunctive or other equitable relief;**
- (2) the costs and expenses of the suit, including reasonable attorney's fees and expert fees; and**
- (3) a civil penalty of not more than five hundred dollars (\$500).**

(b) If a violation of this chapter is committed intentionally, or constitutes a second or subsequent violation, the attorney general may bring a civil action to recover a civil penalty of not more than ten thousand dollars (\$10,000) per violation, in addition to the relief provided in subsection (a)(1) and (a)(2).

(c) A civil penalty collected under this chapter shall be deposited in the state general fund.

Sec. 17. The attorney general may adopt rules under IC 4-22-2 to carry out this chapter."

Delete pages 3 through 6.

Renumber all SECTIONS consecutively.

(Reference is to SB 256 as printed January 16, 2026.)

GARTEN

